

INDEPENDENT JOURNEY GUIDE

The Independent Journey Checklist

Everything you need to manage your own surrogacy journey - step by step.

For families who have found their surrogate and are ready to move forward – without a full agency.

Robyn Price

Executive Director, Canadian Surrogacy Options

In this field since I was four years old.

You found your surrogate. Now what?

This checklist is for families who are doing their surrogacy journey independently – meaning you have found your surrogate yourself, whether through a friend, family member, online community, or your own network. You are not working with a full-service agency, or you are using limited agency support.

That is a completely valid path. But it is also a path where things can go wrong when steps are missed, done in the wrong order, or handled without the right professionals involved.

I have been in this field since I was four years old. My mother founded Canadian Surrogacy Options in 1992. I have seen independent journeys go beautifully – and I have seen them fall apart because someone skipped a step that seemed minor at the time.

"This checklist will not replace a lawyer, a clinic, or a counsellor. But it will make sure you know what you need and when you need it."

Work through this guide in order. Every phase builds on the last. And if at any point you feel like you need more support than a checklist provides, CSO offers consultation calls, receipt management, and independent journey support packages – you do not have to do this completely alone.

– Robyn Price, Executive Director, Canadian Surrogacy Options

How to Use This Checklist

PHASE	TOPIC	WHO IT APPLIES TO
01	Confirming readiness	Both parties
02	Building your team	Lawyers, clinic, counsellor

PHASE	TOPIC	WHO IT APPLIES TO
03	Medical screening	Surrogate and embryos
04	Legal agreements	Before anything medical
05	Financial setup	Trust account and expenses
06	The pregnancy	Support and communication
07	Birth preparation	Legal and logistical
08	After the birth	Parentage and closure

PRIORITY ITEMS

Items marked **PRIORITY** are the steps most commonly skipped on independent journeys and the ones most likely to cause serious problems if missed.



PHASE ONE

Confirming Readiness

Before anything else is signed or scheduled

INTENDED PARENTS

- ☐ You have a confirmed diagnosis or medical reason for surrogacy
- ☐ You have completed or are working with a fertility clinic on embryo creation
- ☐ You have a realistic understanding of total costs (\$60,000 to \$150,000+ CAD) PRIORITY
- ☐ You have confirmed access to funds or financing before proceeding PRIORITY
- ☐ You have discussed surrogacy in depth with your partner if applicable
- ☐ You have or are arranging psychological support for yourself
- ☐ You understand the Canadian altruistic model – no fees to surrogate, reimbursements only PRIORITY

YOUR SURROGATE

- ☐ She has had at least one previous successful pregnancy and birth PRIORITY
 - ☐ She is between 21 and 45 years of age
 - ☐ She is a Canadian citizen or permanent resident
 - ☐ She is not currently on social assistance or government benefits PRIORITY
- Receiving reimbursements while on benefits can create legal complications.*
- ☐ She has discussed surrogacy with her partner or support person
 - ☐ She has access to independent legal counsel PRIORITY
 - ☐ She understands she will need independent psychological screening
 - ☐ She is not being coerced or pressured by anyone to be a surrogate PRIORITY

Building Your Team

The professionals you cannot skip

Surrogacy Lawyer (for IPs)

REQUIRED

You need a lawyer who specialises in reproductive law in your province. They will draft and review the surrogacy agreement and handle the parentage order after birth. Do not use a general family lawyer for this.

Independent Lawyer (for Surrogate)

REQUIRED

Your surrogate must have her own independent legal counsel – separate from yours. This is a legal and ethical requirement. You typically pay for her legal fees.

Fertility Clinic

REQUIRED

The clinic performs medical screening of your surrogate, manages the embryo transfer, and handles all medical coordination. Your surrogate must be cleared by your clinic before any agreement is signed.

Registered Psychologist or Counsellor

REQUIRED

Independent psychological screening for the surrogate (and ideally IPs) is required by most clinics and strongly recommended by lawyers. Use a professional with reproductive experience.

Life Insurance Broker

REQUIRED

Your surrogate needs life insurance for the duration of the pregnancy. Some standard policies exclude surrogacy – get this confirmed in writing before the transfer.

Accountant

OPTIONAL – RECOMMENDED

Surrogate reimbursements, trust accounts, and cross-border payments can have tax implications. A brief consultation is worth it.

Medical Screening

Before any legal agreements are signed

IMPORTANT ORDER OF OPERATIONS

Medical screening happens **before** legal agreements. Do not sign anything until your surrogate has been medically cleared by your clinic.

SURROGATE MEDICAL SCREENING

- ☐ Surrogate has had initial consultation with your fertility clinic PRIORITY
- ☐ Full physical exam and bloodwork completed
- ☐ Uterine assessment (sonohysterogram or hysteroscopy) completed PRIORITY
- ☐ Infectious disease screening completed for surrogate and her partner PRIORITY
- ☐ Psychological evaluation by registered professional completed PRIORITY
- ☐ Drug and alcohol screening completed if required by clinic
- ☐ Clinic has issued formal medical clearance in writing PRIORITY
- ☐ Surrogate's OB/GYN has been identified for pregnancy care

EMBRYO / GENETIC MATERIAL

- ☐ Embryos are created and confirmed viable by your clinic PRIORITY
- ☐ Embryo grading and quantity confirmed in writing from clinic
- ☐ Embryos are stored at a clinic that can coordinate with your surrogate's transfer clinic PRIORITY

If embryos are at a different clinic (e.g. Montreal for Quebec IPs), confirm transfer logistics early.

- ☐ Genetic testing (PGT) status confirmed and documented
- ☐ Embryo transport arrangements confirmed if applicable

Legal Agreements

The most important phase – do not rush this

NON-NEGOTIABLE RULE

The surrogacy agreement is the legal foundation of your entire journey. It must be completed and signed by all parties **before** any embryo transfer takes place. No exceptions.

- ☐ Both parties have retained independent legal counsel PRIORITY
- ☐ IPs' lawyer has drafted the surrogacy agreement PRIORITY
- ☐ Surrogate's lawyer has reviewed the agreement independently PRIORITY

Allow at least 2 to 4 weeks for this process. Do not rush your surrogate's lawyer review.

- ☐ Agreement includes: reimbursement schedule and categories
- ☐ Agreement includes: selective reduction and termination clauses PRIORITY
- ☐ Agreement includes: multi-fetal pregnancy terms
- ☐ Agreement includes: contact and communication expectations during pregnancy
- ☐ Agreement includes: what happens if the surrogate or IPs need to withdraw PRIORITY
- ☐ Agreement includes: travel restrictions and lifestyle expectations
- ☐ Agreement includes: media and social media restrictions if applicable
- ☐ All parties have signed the agreement before transfer proceeds PRIORITY
- ☐ Copies of signed agreement held by both legal teams

PROVINCE NOTE - QUEBEC

If your surrogate is in Quebec, note that Quebec's Civil Code does not recognise surrogacy agreements as enforceable. Use a surrogate in another province. Your lawyer can advise.

Financial Setup

Protecting your surrogate and yourself

How you manage money on an independent journey matters enormously – legally, ethically, and practically. Here is what needs to be in place before any reimbursements flow.

TRUST ACCOUNT AND EXPENSE MANAGEMENT

- ☐ A trust account has been established to hold surrogate expense funds PRIORITY

This should be managed by a lawyer, not by you or the surrogate directly. CSO also offers receipt management services if you need a third party to handle this.

- ☐ Initial trust deposit made per agreement terms

- ☐ Surrogate has been provided with a copy of approved expense categories PRIORITY

- ☐ Receipt submission process agreed upon and documented

- ☐ Reimbursement turnaround time agreed upon (recommended: within 14 days of receipt)

- ☐ Surrogate life insurance policy in place and active PRIORITY

- ☐ Disability insurance reviewed if applicable

- ☐ Surrogate's base monthly allowance (if applicable) confirmed and scheduled

IMPORTANT

Never pay your surrogate directly in cash or e-transfer without documentation. Every dollar should be traceable, documented, and receipted. This protects both of you.

Approved Reimbursement Categories

The following expenses are generally considered reimbursable under Canadian law when documented with receipts:

- Maternity clothing allowance
- Travel to and from medical appointments (mileage, parking, transit)
- Childcare during medical appointments
- Lost wages for mandatory medical appointments
- Medications and supplements prescribed for the surrogacy
- Psychological counselling during the journey
- Life and disability insurance premiums

- Legal fees for the surrogate's independent counsel
- Housekeeping if medically required post-transfer or post-birth
- Hospital costs not covered by provincial health insurance
- Comfort items and nutritional supplements as agreed



PHASE SIX

The Pregnancy

Staying connected and keeping things healthy

- ☐ Positive pregnancy test confirmed – both parties notified
- ☐ First trimester screening appointment dates shared with IPs
- ☐ Communication schedule agreed upon (calls, texts, appointment updates)
- ☐ IPs have been introduced to surrogate's OB/GYN and are on approved contact list

Ask the OB/GYN office in writing to copy IPs on appointment summaries.

- ☐ Anatomy scan (18 to 20 weeks) attended or report shared with IPs

- ☐ Monthly expense reimbursements processed on time

PRIORITY

- ☐ Any complications or hospitalisation communicated to IPs immediately

PRIORITY

- ☐ Third trimester check-in call between all parties completed
- ☐ Psychological support available to surrogate throughout – not just at start
- ☐ IPs have arranged travel plans if they live outside surrogate's province
- ☐ Birth preferences discussed and documented

ON THE RELATIONSHIP

The relationship between IPs and surrogate is the heart of this journey. Check in regularly, acknowledge milestones, send thank-you notes. The families who build genuine relationships with their surrogates almost always describe their experience as one of the most meaningful of their lives.

Birth Preparation

The 8 weeks before your due date

☐ Hospital birth plan completed and on file with delivering hospital

☐ Hospital has been notified of the surrogacy arrangement in writing **PRIORITY**

☐ IPs are listed as authorised individuals at the hospital **PRIORITY**

☐ IPs' lawyer has filed for pre-birth order if applicable in that province **PRIORITY**

Ontario, BC, and Alberta typically allow pre-birth orders. File at least 6 to 8 weeks before due date.

☐ IPs have confirmed travel and accommodation near birth location

☐ Emergency contact plan documented – what happens if birth is early

☐ Surrogate has a support person for the birth separate from IPs if desired

☐ Cord blood banking decision made and kit obtained if applicable

☐ Newborn care plan confirmed (who is in the room, who holds baby first, etc.)

☐ IPs have reviewed their province's parentage process with their lawyer **PRIORITY**



PHASE EIGHT

After the Birth

Legal parentage and closing the journey

The baby is here. But the journey is not quite over. Here is what needs to happen in the weeks and months after birth.

- ☐ Birth certificate application filed with IPs listed as parents PRIORITY

In provinces with pre-birth orders this is straightforward. In others, additional steps required.

- ☐ Post-birth parentage order obtained if pre-birth order was not available PRIORITY

- ☐ Passport application initiated for baby if travel is required

- ☐ Final expense reimbursements processed and documented PRIORITY

- ☐ Trust account closed and final accounting provided to both parties PRIORITY

- ☐ Life insurance policy on surrogate terminated (with her confirmation)

- ☐ Any final medical follow-up for surrogate attended and reimbursed

- ☐ Gratitude acknowledged – letter, gift, or agreed-upon token of appreciation

- ☐ Future contact expectations discussed and agreed upon

- ☐ All legal files closed with both legal teams

"Congratulations. You did this. From hope to heartbeat to home - exactly as it should be."

The Most Common Independent Journey Mistakes

These are the errors that come up most frequently – and cause the most damage. Read through them once, even if you are confident you know what you are doing.



Starting medical before legal

The embryo transfer happens before the surrogacy agreement is signed. This leaves everyone legally unprotected. Agreement first – always.



Paying the surrogate directly

Cash or e-transfer payments without documentation create legal risk and can be mischaracterised as commercial surrogacy. Use a trust account.



Skipping independent legal counsel for the surrogate

Some IPs try to use one lawyer for both parties to save money. This is legally and ethically unacceptable. Both parties need independent counsel. Period.



Not confirming insurance coverage

Standard life insurance policies sometimes exclude surrogacy. Confirm in writing before the transfer that your surrogate is covered.



Rushing the match because you are emotionally ready

Being emotionally ready to proceed does not mean the surrogate is medically and psychologically cleared. The screening process exists to protect everyone – including her. Do not skip or rush it.



Ignoring provincial parentage laws

Parentage law varies significantly by province. What works in Ontario may not work the same way in another province. Your lawyer needs to be licensed in the relevant province.



Underestimating the cost

\$60,000 is the floor, not the ceiling. Budget for complications, additional transfer cycles, and contingencies. Going into this under-resourced is one of the most common causes of journey breakdown.

WE'RE HERE

You don't have to do this completely alone.

This checklist covers what you need to know. But knowing what to do and having support while you do it are two different things.

CSO offers a range of services for independent journey families – from single consultation calls to full receipt and expense management. You do not have to take on a full agency program to access our expertise.

Consultation Call

Book a 60-minute call with Robyn to review your situation, ask questions, and get guidance on any phase of your journey.

Surrogate Expense Management

CSO holds funds in trust and manages receipt review, approval, and monthly statements on your behalf. Removes the financial administration from your plate entirely.

Independent Journey Support Package

Ongoing light-touch support throughout your journey – check-ins, document review, and access to Robyn when you need a second opinion.

BOOK YOUR FREE CALL

calendly.com/cso-robyn

30 minutes with Robyn – no obligation, no pressure.

Canadian Surrogacy Options

Cambridge & Guelph, Ontario

1-877-401-4175 | canadiansurrogacyoptions.com

robyn@canadiansurrogacyoptions.com

Little Miracles Egg Donation Services

little-miracles.ca

This guide is provided for informational purposes only and does not constitute legal or medical advice. Always obtain independent legal counsel before entering into any surrogacy arrangement. Laws vary by province – consult a surrogacy lawyer licensed in the relevant jurisdiction.